

## 25STCV15589 25STCV15589

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-09-23

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C413%2C09%2F23%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C413%2C09%2F23%2F2026)

Source SHA-256: 45cb4bf3aa696dc438a4c370854d9119e708e3f3605640a6ea52a001c0c003ea

Case Number: 25STCV15589 Hearing Date: September 23, 2026 Dept: 413

### TENTATIVE RULING

HEARING DATE: September

23, 2026

CASE NUMBER: 25STCV15589

CASE NAME: Kimberly Cruz v. FCA US, LLC, et al.

MOVING PARTY: Plaintiff Kimberly Cruz

OPPOSING PARTY: Defendant FCA US, LLC

PROCEEDING: MOTION TO COMPEL INITIAL

DISCLOSURES; AND FOR MONETARY SANCTIONS

RULING SUMMARY: Plaintiff's motion to compel and for sanctions is denied.

MOVING PARTY: Defendant FCA US, LLC

OPPOSING PARTY: Plaintiff Kimberly Cruz

PROCEEDING: MOTION FOR SANCTIONS

OPPOSITION: September 10, 2026

REPLY: September

16, 2026

RULING SUMMARY: FCA's motion for sanctions is granted. The Court orders Plaintiff's counsel, Strategic Legal Practices, APC, to pay monetary sanctions of \$1,500.00 to FCA's counsel within 30 days of this Ruling.

## Background

On May 29, 2025, Kimberly Cruz ("Plaintiff") filed this Lemon Law action against Defendants FCA US LLC ("FCA"); Bravo Chrysler Dodge Jeep Ram of Alhambra ("Bravo") (together, "Defendants"); and Does 1 to 10.

The Complaint alleges the following causes of action for (1) Violation of Civ. Code § 1793.2(d); (2) Violation of Civ. Code § 1793.2(b); (3) Violation of Civ. Code § 1793.2(a)(3); (4) Breach of the Implied Warranty of Merchantability (Civ. Code, §§ 1791.1, 1794, 1795.5); (5) Negligent Repair, and (6) Fraudulent Inducement.

On June 15, 2026, Plaintiff filed a motion to compel initial disclosures pursuant to Code of Civil Procedure section 871.26 and request for monetary sanctions.

On July 9, 2026, FCA filed a motion for an order for sanctions based on Plaintiff's failure to fully comply with mandatory disclosures set forth in Code of Civil Procedure section 871.26, subdivision (b).

Oppositions were filed to both motions

## LEGAL STANDARDS

"Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (Code Civ. Proc., § 871.26, subd. (b).)

Unless the party failing to comply with this section shows good cause, a court shall impose sanctions as follows: "A one-thousand-five-hundred-dollar (\$1,500) sanction

against the plaintiff's attorney...paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b)." (Code Civ. Proc., § 871.26, subd. (j).)

#### FCA's MOTION FOR SANCTIONS

FCA

argues Plaintiff was required to provide all mandatory disclosures and documents within 60 days after the filing of an answer or other responsive pleading and failed to do so. (Mot., p. 2.)

Defendants filed a responsive pleading on August 11, 2025, triggering the mandatory disclosure deadline and making mandatory disclosures due on October 10, 2025. (Coughlin Decl., ¶¶ 2, 3.)

Plaintiff served initial disclosures on January 30, 2026. (Coughlin Decl., ¶ 4, Ex. A.) FCA argues Plaintiff failed to provide documentation and to fully comply with the mandatory disclosures. (Mot., p. 3.)

Plaintiff failed to provide initial disclosures within the statutory timeframe. Because Defendants filed a responsive pleading on August 11, 2025, Plaintiff's initial disclosures were due by October 10, 2025. Plaintiff did not provide initial disclosures until January 30, 2026, well beyond the 60-day timeframe, and Plaintiff failed to produce any documents with her January 30, 2026, disclosures.

Further, Plaintiff failed to carry the good-cause burden. Plaintiff's disclosures asserted a "diligent search," and that responsive documents sit in FCA's own portal. (Coughlin Decl. ¶ 4, Ex. A.) That explanation does not constitute good cause. Plaintiff has not explained the delay or the absence of document production. On this record, Plaintiff has not shown good cause.

#### PLAINTIFF'S MOTION TO COMPEL AND FOR SANCTIONS

Plaintiff's motion is based on assertions that Defendant failed to comply timely with the disclosure requirements under section 871.26

and failed to serve a verified response with the disclosures that it did produce. Defendant contends that it did provide the required disclosures under the statute and that the statute does not require a verified response.

Plaintiff has failed to show that section 871.26 requires a verified statements with the disclosures provided. Plaintiff contends: "California's mandatory initial disclosure statute expressly provides that initial disclosures 'shall be verified either in a written declaration by the party or the party's authorized representative, or signed by the party's counsel.'" But Plaintiff cites section 2016.090(a)(5) of the Code of Civil Procedure to support this contention; that provision is in the civil discovery provisions of the Code, and Plaintiff offers no authority to show that it is applicable to the initial disclosures under section 871.26. Plaintiff's contention is entirely without merit.

With regard to the documents that Defendant did and did not produce, Plaintiff argues that, had Defendant conducted electronic searches in various databases, it would have found other documents to be produced with the initial disclosures. Plaintiff has offered no evidence to support the contention that an electronic search would produce additional documents. Plaintiff has also not shown that the initial disclosures that Defendant provided failed to comply with Defendant's obligations under section 871.26.

## Conclusion

FCA's motion for sanctions is granted. The Court orders Plaintiff's counsel, Strategic Legal Practices, APC, to pay monetary sanctions of \$1,500.00 to FCA's counsel within 30 days of this Ruling. Plaintiff's motion to compel and for sanctions is denied.

Date: September  
23, 2026

---

William  
E. Weinberger

Judge,  
Los Angeles Superior Court